RODAH MABHUNUH (NEE CHITAVATI)
versus
SHAKESPEAR MABHUNUH

HIGH COURT OF ZIMBABWE
MUZENDA J
MUTARE, 5 March 2026

Opposed Application

Mr. *P Gwizo*, for the applicant
Ms. *N. A Maguranyanga*, for the respondent

MUZENDA J:

1. This is an application where applicant seeks the indulgence of this court to extend a period within which she be allowed to buy out her former husband from a matrimonial property.
2. On 10 March 2025 I issued an order granting current applicant to buy out the respondent, her former husband within a period of six months calculated from the date of evaluation as agreed by the parties. The property was subsequently evaluated at USD 110 000 and applicant was expected to have bought out respondent by 10 September 2025. Applicant failed to meet the deadline. On 3 November 2025 respondent notified applicant that since applicant had failed to buy out respondent out within 6 months, respondent deposited USD 55 000 with his lawyers and money was ready for collection and that she had to surrender the title deeds to respondent. Applicant refused to collect the funds, she could not surrender the property to the respondent. On 12 November she decided to approach the court seeking variation of the consent order of 10 March 2025. She couched the face of the application purporting to seek the variation of the order in terms of r 29 of the High Court Rules, 2021 seeking extension of time to raise money to buy out the respondent.
3. In opposing the application, respondent raised preliminary objections. Respondent pointed out that the application is fatally defective for failing to comply with the cited r 29(2) where

an aggrieved party has one month after knowledge of the order or judgment to lodge the application and *in casu* applicant did not act in terms of the rules. Respondent further submitted *in limine* that applicant made a wrong application at law. He averred that in terms of r 29 it would be premised upon a judgment having been granted in error in the absence of the other party or where there is ambiguity, patent or omission in the order or judgment and that the order or judgment was granted as a result of a mistake and before the court, this is not what applicant pleaded. Further respondent stated that applicant committed material non-disclosure of facts where she completely failed to confide in court by telling it that she was offered her 50 percent share and rejected it in November 2025. She did not explain to court in her papers why she rejected 50 percent of the proceeds of sale as per court order. Respondent prayed that all the points *in limine* be upheld and that the matter be struck off with costs.

4. In response to the preliminary objections, applicant labelled the first objection illusory. She alleged that respondent totally; misinterpreted the law and she persisted that her application was not fatally defective. In her view it was a "mis-citation" of a typo-graphical error where it was shown that the application was made in terms of r 29. Applicant urged the court to use its discretion to condone the error and rely on r 4C to do so. No application to amend the application was made, applicant submitted that it was not necessary. Applicant also dismissed material non-disclosure and submitted that she attached all correspondence which she communicated with respondent's legal practitioners. She added that she actually told respondent that she had sub-divided the property and added improvements to bring the value to USD 1,3 million on the market and US$55 000 was too low. In any case respondent did not and does not suffer prejudice, she added. She dismissed allegations of dirty hands and willful disrespect of the court order. She also made allegations that respondent was threatening to buy her out and it was her who was to suffer prejudice since respondent would be unjustly enriched. She prayed for the dismissal of respondent's points *in limine* with costs.
5. The applicant approached the court seeking relief in terms of r 29, of the High Court Rules. Rule 29 sets out cause of action that would be pleaded by an applicant in approaching the court. The judgement should have been in error in the absence of the other party or where

there is ambiguity, patent or omission in the order or the judgment and that the order or judgment was granted as a result of a mistake. This is the set of causes of complaints an applicant must rely on in approaching the court in terms of r 29. Applicant's affidavit does not address any of these issues. It is true there is no application in terms of r 29.

6. After receiving the notice of opposition containing points *in limine*, applicant did not seek leave of this court to attend to the fatal defects. On the date of hearing applicant did not apply for condonation and went on to cite a wrong r 4c of the old High Court Rules. A court's indulgence is not liberally granted an adequate explanation should be proffered by the guilty party before the court condones a conduct found wanting. Applicant's papers are not in order and her approach to issues of procedure is lackluster, she seems to get compassion from the court without making efforts to correct her patent errors. She does not explain why if she was relying on r 29, she could not approach the court within a month. The question that remains unanswered is that in terms of what rule, section of the law or procedure had she approached the court particularly where an order was granted by consent?
7. It is my firm view that respondent's points *in limine* have merit. They are all upheld and the matter is struck off the roll with costs.